

Smt. Parmeshwari Devi vs The State on 23 August, 2014

IN THE COURT OF SHRI SANDEEP GARG :
ADMINISTRATIVE CIVIL JUDGE- CUM- ADDITIONAL
RENT CONTROLLER (CENTRAL) : DELHI

Petition No. : 748/1997
Unique ID No : 02401C0005491997

In the matter of:-

Smt. Parmeshwari Devi,
W/o. Late Sh. Ramchnader,
R/o. WZ-79, Village Shakurpur,
Delhi-110034.

....Petitioner.

Versus

The State

.....Respondent.

Date of Institution	:	26.09.1997
Date of order when reserved	:	23.08.2014
Date of order when announced	:	23.08.2014

J U D G M E N T :

1 The present succession petition has been filed by the Petitioner namely Smt. Parmeshwari Devi for the grant of Succession Certificate in her favour qua the debts and securities left by Sh. Ram Chander, who expired on 29.07.1995 at Delhi.

2 After filing of this petition, notice of filing of this petition was given to the general public by way of publication in the newspaper 'Veer Arjun' dated 03.11.1997, but none has appeared from general public to oppose or contest the present petition. 3 Vide order dated 16.01.2003, the application under section 151 CPC filed by one Reshma for herself and on behalf of minor Mohit was allowed and both of them were impleaded as respondents. They claimed themselves to be the widow and son of the deceased. 4 During the pendency of the petition, objector Kamla Devi, mother of the deceased had also expired. Vide order dated 01.11.2004, the objections filed by objector Jagram, father of the deceased, dated 08.05.1998 were dismissed.

5 A reply was filed by respondent Mohit through his mother and natural guardian Smt. Reshma wherein it was averred that the deceased Sh. Ram Chander was earlier married to the petitioner Smt. Parmeshwari Devi and she was not having any children from Late Sh. Ram Chander. It was further averred that with the consent of the petitioner, deceased had performed second marriage with Smt. Reshma and a son namely Mohit was born on 20.10.1995 posthumously. The deceased Ram Chander died intestate at Delhi on 29.07.1995 in an accident. Objector Mohit, being the son of Late Ram Chander is entitled to succeed to his Estate. As per Section 16 of the Hindu Marriage Act, 1955, there is no distinction between legitimate and illegitimate children. It is contented that the second marriage between deceased Sh. Ram Chander and Smt. Reshma was not a void marriage as

the same was solemnized between them according to their customs and with the consent of the petitioner herself. Deceased was residing with the objectors at WZ-79, Village Shakurpur, Delhi-34 and the petitioner was also residing with them.

6 Petitioner filed her replication/rejoinder denying all the averments made by the respondent Mohit.

7 Petitioner herself deposed as PW-1 and stated that the deceased Sh. Ram Chander was her husband. He expired on 29.07.1995 and his death certificate is Ex. P-1. Besides her, the deceased has left behind one adopted daughter namely Soniya Rani. During the pendency of the petition, the mother namely Kamla had also expired. The deceased did not execute any Will during his life time. The deceased has left behind two saving bank accounts bearing no. 16696 and 5222 with State Bank of India, Shakurpur branch, Delhi, the copies of which are Ex. P-2 and Ex. P-3. The deceased had also left behind a policy with Oriental Insurance Company Limited regarding the amount damage of vehicle bearing no. DL-2CB-7017, which is Mark A. The said vehicle was insured for a sum of Rs. 1,38,000/- the copy of the said insurance policy is Mark B. During cross examination of PW-1, it is admitted by the petitioner that she did not have any issue from deceased Ram Chander. She denied all the documents filed by the objector Reshma and Mohit. She denied that she is staying in the same house as that objectors right from the time of marriage of deceased with Reshma till today. She admitted that at the time of filing of the petition, she did not mention about Dharamwati @ Sonia. She did not remember the date on which the said Dharmwati @ Sonia was adopted by her. Again said, it was 26th day of year 1997. The adoption was done in court and the copy of the same is Ex. PW-1/R-1. Photographs of adoption were taken at the temple situated at Shakarpur. The said function was attended by her in laws namely Kishan Singh, Kanihya Lal, Bharat Singh etc. She denied that all these things stated by her are after thought and concocted with a view to grab the share of the objector. The photographs of the functions are Marked J/1 to 4. She denied the suggestion that these photographs pertains to some birthday ceremony and not to adoption ceremony. The original photographs are Ex. PW-1/R-2 to Ex. PW-1/R-5. She admitted that the photographs Ex. PW-1/R-2 to Ex. PW-1/R-5 did not have the photographs of father and mother of the Dharamvati i.e. Subhash Chander and Nangi Devi. She denied the suggestion that Smt. Nangi Devi, mother of Dharamwati has not consented to the said adoption and that is why her photographs are not there in the said photographs. At the time of adoption of Dharamwati, she was aged about 2 years. The Adoption Deed was got prepared and registered at Sub Registrar Office, Kashmiri Gate. She denied that Reshma and Mohit are residing in the house where she resides. 8 PW-2 Sh. Kailash Kumar, Assistant, Oriental Insurance Company deposed and filed an affidavit of Sh. Dalip Kumar, Sr. Assistant of Oriental Insurance Company which is Ex. PW-2/A, as which the record of the claim case is not traceable. The claim was closed for want of necessary compliance by the claimants/insured. 9 No evidence has been led by the objector Mohit in order to substantiate his objections.

10 It is well settled proposition of law that succession petitions are to be decided summarily. Sec. 373 of the Indian Succession Act provides that a succession petition is to be decided in a summary manner and even if court cannot decide the right to the certificate without determining questions of law or fact which may seem to be too complicated and difficult for determination in a summary

proceedings, the Court may nevertheless grant a certificate to the applicant if he appears to be the person having prima facie the best title thereto. Thus U/s. 373 of Indian Succession Act, only prima facie case is to be seen and other questions of law and fact which may be complicated are to be decided in regular civil court.

In the case of Madhvi Amma Bhawani Amma and others Vs. Kunjikutty Pillai Meenakshi Pillai and others AIR 2000 Supreme Court 2301=2000 AIR SCW 2432 it was held that "subsec. (3) of S. 373 of Succession Act which deals with procedure for grant of certificate reveals two things, first adjudication for grant of certificate is summary proceedings and secondly if the question of law and fact are intricate or difficult, it could still grant the said certificate based on applicants prima facie title. In other words the grant of certificate under it is only a determination of prima facie title. This as a necessary corollary confirms that it is not a final decision between the parties. So, it cannot be construed that mere grant of such certificate or a decision in such proceeding would constitute to be decision on an issue finally decided between the parties. If that be so the principle of res judicata cannot be made applicable." 11 There is no dispute about the factual matrix that deceased was earlier married with the petitioner and no child was born from the said wedlock. The mother of the deceased namely Smt. Kamla Devi (since expired) categorically mentioned in her reply that husband of the petitioner had adopted Miss Dharamwati @ Sonia when she was 2 years old and since then, she has been living with the petitioner as an adopted daughter. Copy of ration card corroborates the claim of the petitioner that Dharamwati is the adopted daughter of deceased as her name has been mentioned in the ration card and her father's name has been shown as Sh. Ram Chander. In the objections filed by parents of deceased, it was specifically averred that the deceased Sh. Ram Chander had solemnized second marriage with Reshma and out of that wedlock, objector Mohit was born. Accordingly, the court holds that petitioner, adopted daughter Dhanwati @ Sonia and objector Mohit are prima facie entitled to 1/3rd share each qua the debts and securities of deceased Sh. Ram Chander.

12 Therefore, the court is of the considered opinion that there is prima facie no impediment for the grant of Succession Certificate in favour of petitioner, adopted daughter namely Dhanwati @ Sonia and objector Mohit qua the debts and securities of deceased namely Sh, Ram Chander. Accordingly, a Succession Certificate be issued in favour of petitioner, adopted daughter namely Dhanwati @ Sonia and objector Mohit to the extent of 1/3rd share each in respect of saving bank accounts bearing no.16696 and 5222, maintained with State Bank of India, Shakurpur branch, Delhi, Ex. P 2 and Ex. P 3 and insurance claim, as per which the balance amount in the saving accounts of the deceased was Rs.1,87,423/- Succession Certificate be drawn on deposit of requisite court fee i.e. Rs.4,685.57/- and on furnishing an Indemnity Bond with one surety within 15 days.

File be consigned to Record Room.

Announced in the open court
on 23.08.2014

(SANDEEP GARG)
Administrative Civil Judge-Cum-
Additional Rent Controller (Central)
Delhi

23.08.2014

Present : Sh. Sarwagya Sharma, Ld. Counsel for petitioner with petitioner in person.

Sh. D.N. Kadiyan, Ld. Counsel for objector Mohit with objector in person.

Separate statement of objector recorded whereby RE is closed. Final arguments heard.

Vide separate judgment of even date, Succession Certificate is issued in favour of petitioner, adopted daughter namely Dhanwati @ Sonia and objector Mohit qua the debts and securities of deceased namely Sh. Ram Chander. Accordingly, a Succession Certificate be issued in favour of petitioner, adopted daughter namely Dhanwati @ Sonia and objector Mohit to the extent of 1/3rd share each in respect of saving bank accounts bearing no.16696 and 5222, maintained with State Bank of India, Shakurpur branch, Delhi, Ex. P□2 and Ex. P□3 and insurance claim, as per which the balance amount in the saving accounts of the deceased was Rs.1,87,423/□ Succession Certificate be drawn on deposit of requisite court fee i.e. Rs. 4,685.57/□and on furnishing an Indemnity Bond with one surety within 15 days.

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(Sandeep Garg) ACJ/ARC (Central) Delhi/23.08.2014